

1 15A NCAC 12H .0307 is proposed for re-adoption as follows:

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3 **15A NCAC 12H .0307 EXTINGUISHMENT BY THE STATE**

4 ~~(a) Articles of dedication may be extinguished by amendment and the dedication abandoned when the qualifying~~
5 ~~features of the land have been destroyed or irretrievably damaged and the public purposes of the dedication have been~~
6 ~~utterly frustrated and then only after a public hearing with notice provided as described in Rule .0306(a) of this Section~~
7 ~~and only then with the concurrence of the Governor and Council of State. Articles of dedication may be extinguished~~
8 ~~by amendment and the dedication abandoned only under the following circumstances:~~

- 9 (1) the qualifying features of the land have been destroyed or irretrievably damaged;
10 (2) the public purposes of the dedication have been frustrated;
11 (3) after a public hearing with notice provided as described in Rule .0306(a) of this Section; and
12 (4) with the concurrence of the Governor and Council of State.

13 ~~(b) Where articles of dedication are proposed to be extinguished for other reasons, the State must find that the~~
14 ~~extinguishment and abandonment serves an imperative and unavoidable public necessity and that no prudent~~
15 ~~alternative exists, and then only after a public hearing with notice provided as described in Rule .0306(a) and only~~
16 ~~then with the concurrence of the Governor and Council of State. Notwithstanding the provisions of Paragraph (a) of~~
17 ~~this Rule, Articles of dedication may be extinguished by amendment and the dedication abandoned only under the~~
18 ~~following circumstances:~~

- 19 (1) the State finds that the extinguishment and abandonment serves an imperative and unavoidable
20 public necessity and that no prudent alternative exists;
21 (2) after a public hearing with notice provided as described in Rule .0306(a) of this Section; and
22 (3) with the concurrence of the Governor and Council of State.

23 (c) After the public hearing, the State shall publish a statement of its findings in the newspaper(s) of largest
24 circulation in the county(ies) where the land lies at least 30 days before the extinguishment is final.

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26 *History Note: Authority G.S. ~~113A-164.4~~ ~~113A-164.6(e)~~; 143B-135.256; 143B-135.260(c);*
27 *Eff. January 1, ~~1986~~; 1986.*
28 *Amended Eff. December 31, 2016.*
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